No. 4. Shanghai, August 18th, 1874.

Your Excellency:

As the "Yuko-maru" is about to leave Shanghai one day earlier than was expected, I am unable to write you further upon the circumstances of my arrest and detention in Amoy and other matters of importance. I will simply state to you that I have communicated to Captain James certain facts which, I understand from him, have since been the subject of telegraphic correspondence between himself and the Navy Department; and I beg to hand you authenticated copies of copies of important documents which I procured while I was in Amoy. (Enclosures Nos. 1.2.3 & 4)

By the time Mr. Okubo reaches this port, I will have completed my despatch No 5 to you, which will go by next mail; and I will furnish Mr. Okubo with a copy of the same.

The mystery of my arrest and sudden liberation has been the subject of general comment here, and many expressions of sympathy and regret have been tendered to me by American residents, the most significant of which is that of the Commander of the U.S.S. "Monocacy," who informed me that, on hearing from Mr.

Seward, the U.S. Consul General here, that orders were about to be issued for my arrest, he strongly remonstrated with him against the step, as being in every way illegal and uncalled for.

I have the honor to be,
Your Excellency's,
Most Obedient, humble Servant,
Chas. W. LeGendre

His Excellency
Okuma Shigenobu,
Minister of Finance,
etc. etc. etc.

The Enclosures with Despatch No. 4, Consisted of:

o 1st The Copy of a letter in Chinese from the General and Governor of Formosa to the U.S. Consul at Amoy;

2nd The Copy of the translation in English of a despatch from the Foochow Board of Trade to General Le Gendre, U.S. Consul at Amoy;

o 3rd Copy of U.S. Consul's Despatch in Chinese to General Liu and Taotai Woo of Formosa;

4th Copy of translation in English of a despatch from Tartar General Woon and Viceroy Li of Foochow to M. Henderson, U.S. Consul at Amoy, about Formosa matters.

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copy Enclosure to 15.

From Tartar General and Superintendent of Custom house Woon, and Li Viceroy of Fuhkeen and Che-kiang and acting Governor of Fuhkeen, send a reply:

On the 24th of this month (June 8th) we received your dispatch etc.

Now, we have investigated this Formosa business, as well as the statements of the Tautai of Formosa and the Captain of the "Yang boo" to the effect that this expedition to the savages of Formosa has been planned by the former Consul at Amoy Le Gendre, also one Cassel and many others were assisting him &c &c. We have also examined and found that Formosa long belonged to China and the savages are certainly under Chinese jurisdiction, and other nations have nothing to do with them. On this occasion Japan has sent soldiers to punish the savages, without previous consultation with the Foreign Office, and the Japanese Commander in Chief, See Hiang, without awaiting a communication from me, on his own motion took soldiers and formed a Camp Liangkiao, in entire violation both of International law and the treaty between Chinese and Japan. We twice sent to communication to See Hiang Japanese Commander in Chief requiring him to take back his soldiers, and twice sent communication to the Board of Trade to be forwarded to your honorable self to be examined and acted on, all which is on file.

We have received your despatch in which you show your desire to carry obligations and in settling matters to preserve lasting peace and friendship, as well as your purpose to perform your duties, for all which we desire to express our hearty thanks.

We have appointed Chiau, second in the Board of Trade, having rank of Tautai and formerly acting Prefect of Foochow to go to Amoy and have sent a communication to Li, Admiral at Amoy, telling him to await the coming of Chiau, and then with him have a consultation with the U.S. Consul and with him concert some plan of action. And in accordance with the provisions of Art. 1st of the Treaty of the 8th year of Hienfung (1858) that the two countries shall mutually assist in preserving friendly relations. We ask your honorable self to request the Japanese Commander See Hiang to take his soldiers back to Japan.

And if in the vessels that are gone to Formosa there are American citizens aiding the Japanese, we ask you to punish those that are acting improperly whether on land or sea in accordance with the 11th Article of the Treaty and the laws of your country.

From the time when your honorable self arrived in China you have always managed affairs in strict accordance with right so that the streets are

full of praises of yourself by rulers and people and we ourselves are truly thankful.

Now that there are affairs in Formosa over which you are Consul, you can show your friendly feelings by acting in accordance with treaty, by taking measures in connection with Admiral Li and Prefect Chiaw. Thus can you show friendly feeling.

We have sent a communication to Admiral Li and also one to Prefect Chiaw, ordering to go to Amoy and arrange the whole affair with you, for which purpose we give them full powers. And we request you to act with these two not only as officials but as friends. Hoping this, with best regards.

To

Mr. Henderson.
U.S. Consul Amoy and
Formosa.

June 9th, 1874.
" 16th " received.

A true translation.
(signed) Lin Kiew U.S. Interpreter.
assisted by Revd. L. Kip.

A true copy of the original translation now on file at this office.
Attest
St. J. H. Edwards
Acting Clerk

第十二号
[illegible]氏ヘ往復書翰[illegible]
第二号

照會清摺

U. S. Consulate
Amoy August 13 1874

I hereby certify that the foregoing is a true copy of the original despatch now on file in this office

Lin Ken
U S Interpretor

I certify that the above is the signature of Lin Ken United States Interpretor at this Consulate

J J Henderson
U. S. Consul.
Seal

此写ハ本書ト相違無御座候也
大倉謹吾

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copy -

Translation of the same Despatch by Mr. Jones of the Customs.

Foochow Board of Trade to General Le Gendre, United States Consul at Amoy.

Foochow, February 7. 1868.

We beg to inform you that on the 7th day of the first moon we received a joint communication from the Acting Viceroy "Ying" and the Governor Li respecting the American vessel "Rover" lost on the coast of Formosa at a place near Loong Kiao, where the savages murdered the crew and others.

The former Viceroy Wu, and Governor Li addressed the Taotae at Taiwonfoo, and also memorialized the throne stating that they had

大合衆國欽命前陸路提督駐廈正領事官李　　為
照復事。照得接准
貴道鎮同治六年五月初二日來文。披閱倫恣羅妹商船一
案。突然變更。不辨十分詫異之至。本領事前會同
貴総兵面見
貴道鎮時。並無一語駁及該船失事非中國所屬之海。該商
被害非中國所及之地。何以來往照會並無隻字辨及。此
事前三月十六日。面請
貴道鎮都同查辨此案。設有疑議。何以當時並無言及。何以
不將地理圖指示該處不屬

推　妥　役恐微誤

貴國版圖。設有辨駁推諉之處。則當日理應言明。何至延
緩至今。當是時。北風當令。易與駛船進兵。該處天亦未暑。
兵船就近不遠。未難進剿。則該商船人等。擬其尚有未盡
被害。必尚有餘生。然而延今日久。勢必盡被戕害。設使當
時即到該處。可以查驗身屍。易為収殮。將屍首寄交該屍
親收葬。延今骨肉定必朽爛。本領事等。如知
貴道鎮不理此案。確必自行辨理。而
貴國儻有違犯和約章程。彼時
貴道鎮不但毫無推諉。甚至反推。不欲本領事兵力相幫干
預此事。聽憑

the throne stating that they had

○懲恐懲誤
懲懲俗文

貴道鎮自行辦理此案並准照會内開。貴國商船羅妹在生
番地界擱礁被戕。本司道等於
貴領事未到之先早經飭行営縣查辦並云若第可盡力
捜捕緝獲懲治断無又飛速檄行以副我
朝
中外和好至意便無煩
貴國兵力相帮辦理設或損威失事愈抱不安除再飭鳳
山縣営派撥兵役設法査辦外所有貴國兵船會辦此案
之處請不必行等因。次日復經面議執一不移至
貴鎮面後初到不悉該處情形俟旬日間酌妥便可辦理
此案所云用兵之法不易此事自行辦理不必外國相帮

the throne stating that they had

且本鎮奉
命鎮守此方凡事須有把柄責成自然能辦此事等語。本領
事等。以為
貴道鎮通達和約之至意又肯自行盡力辦理此案如本領
事等。以兵力干預此事則
貴道鎮便可藉詞推托尚當日即速進兵便可救出未盡被
害之人。今則盡行被害則責成攸関
貴道鎮之事。本領事等。將離臺湾之時
貴道鎮所論前事。矢口不易。至將欲下船之時。目擊臺湾府
知府申文催請

○角

貴道鎮派兵剿辦殺商船羅妹被害一案。今

貴道鎮自不能推諉不知該商船戕害何處。查三月十五日

來文內開明指係琅嶠紅頭嶼龜仔角崑山。至三月廿八

日。又准照復內開該處地方官林杰等稟称派撥兵隊先

驅進兵以憑相机往辦緣由用副我

國敦篤懷柔之徳意等語。不意五月初二日照會共前議大

不相符。至內開卑職定邦樹峯水杰等查和約係款內。第

十一十三等款。係指在岸上海面被華民欺悔騷擾毀壞

物件。歐傷損害。在中國所轄內洋。被盜搶劫。地方文武員

弁。一經聞報。即當嚴拏治罪。今該商被害之處。係生番界

悔恐侮誤

○復恐傷誤

the throne stating that they had

內。并非中国所轄內洋。與行劫之兇犯。又係生番。并非華

民。援与和約所載絶不相符。然可尽力搜捕。亦断無不設

法相幇。以副我

朝

中外和好至意。無如該處既未收入版図。且為兵力之所

不及。委難設法辦理等。因似此稟復。

貴道鎮不行。詰貫該地方官之罪。反為抄文照會內開為復

擬會稟前情。本鎮司道核寔在情形。此外生番。形同禽獣

似可置不與較。以彰貴国寛大之意等因。准此。往返照覆。

辦論此案。遅延太久。彼此務須雅知遵何和約辦理通融

明悟方可定局。本領事叠經声明作何弁理在案。復再諄

○具恐其誤

援恐挍誤

○無如ノ字未詳

文ノ行次ヲ按ルニ

無奈無那或ハ

奈何等ノ字ナルベ

キ處ニ似タリ

○委ハ委實ノ畧

語ニシテ實以テト

云フホドノ意ナリ

○貫恐責誤

○碓恐確誤

諄重告無論何国事理有違和約。本國斷不能輕容相悖。慫者。本国商舩羅妹在南臺陽失事。船商人等被南臺陽之人戕害。於本年三月十五日。本領事會仝貴總兵為此事面會

貴鎮道詳細指明此案。並准通許迅即嚴辨以便救回尚有未盡被害之人。一面嚴行迅辨同謀陷害兇身。所有先行應辨之事。全未辨及。至兩個月間。歷許應辨之案。突然變更不肯照約行事。所有前議盡已相反。本国斷不肯草草以了此事。茲再明指相示。似此重案。斷不能推諉置之不論。究更責有攸歸。

the throne stating that they had

貴国国運興隆ヨリ顧及通商大局ニ至ル一段其意解スルガ如ク文解セザルニ似タリ按スルニ是レ洋文ノ語氣ヲ直チニ漢文ニ寫シタル者ナランカ

貴國遵照其和約應賠之款。本國勢必盡行追足。始肯了結。該商船在南臺陽遭害。不但有碍本國。亦碍及大西洋通商各國。該處係大西洋來往大洋所有船隻往來。由中華日本大英荷蘭西班牙所轄海島常川必經之區。凡有商船遭風。惟有該処。

貴國國運興隆。國勢日強。國内康安。中外和睦。靡特本國意願所欲。亦兼受其利益。況本國土地充足。不欲外國者

貴國生意日隆。彼此通商。均受其益。然本國願

貴國興隆。亦併願萬國興隆。當知本合衆國為天下通商大國。確無下顧及通商大局。查臺灣南洋。歷年積害本國

扯恐扯誤

肩

商船並窒碍通商利路。設使外國見中國不能截禁生番
作惡。特恐他國擅自剿除。佔及臺灣轄地。本合衆國不能
從旁攔止。雖合衆國不願得人土地。亦無不喜悦他國整
頓利益。通商彼地爲通洋大津。阻碍商艘。其勢斷不能容。
查萬國一體定章。南臺陽住址之人。雖係生番。總中國轄
地。理應約束節制。本合衆國亦有土着生番。在國。本合衆
國與南臺灣生番無異。所應辦之事。本合衆國亦當力肩
其任。設使外國有意唆使生番。内叛。乘机圖佔土地。若中
國欲絶此患。必須認真整頓。自己責成。至
貴道鎮所称。該生番乃王化不及之區。則他國乘机而入。則

the throne stating that they had

敎恐クハ撥カ
或ハ政ノ誤ナラン
暫恐漸誤

煩宜作繁

版章ハ版圖ナラン
格ハ挌ノ誤ナラン

樟桄ノ字誤ナラン
樟腦ニ可ナラン
蓋シ桄榔其字ヲ以テ借用シタルナラン

中國何以处之。凡生蕃之地。本無王化。不論何國可以得
之。以先下手者爲強。至亜墨利駕各國多以如是得之。自
開闢以来。天下萬國生番衆多。嗣從設教。所記愊憤。得以
暫撫。而臺灣隷入中華。其故亦猶是也。生番雖在臺灣。聚
嘯山林。非國非主。該处係中國爲主。其中國所得臺灣。瀕
迄邊愊。亦獨如是。至中國百姓。在臺灣西洋。生齒日煩。莫
非迸逐生番。藉爲受廛之地。自西而東。版章日廣。將之游
滋。是則中國以生番匿跡之地。爲華民托足之鄉。是以與
空地受民無異。不獨是也。甚至與生番交易立契。亦有時
未臻妥叶。如樟桄牂理。在臺灣爲第一。乃係出於生番所

産。為何禁止各洋商不許入山採買、亦不准百姓買賣、只
准歸局員辦理。如有干禁者、立正典型。此文經於上月十
五日接閲、備詳其事。査中國與生番交接、比本台衆國與
本國生番交渉、更為熟悉、難免疎虞之処。現臺灣統地歴
今二百載、為中國管轄、即生番亦歸轄地。以上所論各事、
此其明徴。無庸推飾。凡臺灣所属、無論番民作悪作逆、皆
帰中國厳辦。原非外国干預之事。雖然人非華民、而地属
華土。断不能有利則趨、有害則避。至所有来文内開商船
羅妹人等被戕一案。
貴鎮道推置不理、竟属空談。前經照會、係四月二十八日照

the throne stating that they had

懐字未解
恐ラクハ壊ノ誤リナラン

知。
貴鎮道聲明、該處不獨生番而已、亦多華番錯懐、經已繕陳
在案。若論此案、証据尤多。因此文繁冗、可以毋庸贅述。以
上所陳、関係彼地此両大國重務、理合剴切照會、以便察
照施行。須至照會者。

右　　照　　會

大清欽加提督銜福建臺澎等処地方掛印總鎮斐凌阿巴図魯劉
二品頂戴按察使司銜福建分巡臺澎等処地方兵備道兼提督学政呉

同治陸年伍月貳拾日

李氏第四号書翰ノ訳
第一号

照會

U S Consulate

Amoy August 18 1874

I hereby certify that the foregoing is a true copy of the original dispatch now on file in this Consulate

Lin Kin
U S Interpretore.

I certify that the above is the signature of Lin Kin U S Interpretore at this Consulate.

J J Henderson.
U.S. Consul
Seal

此寫ハ本書ト相違無之候也

在上海日本領事館

大倉謹吾

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the throne stating that they had

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大清欽命辦理通商事務（福建簡用道巖勇巴圖魯張。署福州府正堂卢。）

照會事。同治七年正月初八日奉

前兼署督憲英（巡撫部院李）會牌。內開案照合衆國羅妹商船在臺灣

琅琦地方遭風被生番殺害水手人等一案經

吳部堂會同本部院檄飭臺灣鎭道暨

奏委前署臺灣鎭等馳往査辦並經駐厦李領事隨赴琅

琦。業將此案辦結李領事與番目卓杞篤議定旗式以後

無論何國商船遭風到彼設立此旗相示該生番等自當

竭力救援前據李領事呈送紅紗旗式申請照會各國官

員知照當經本兼署部堂將旗式飭發該局照會各口領

the throne stating that they had

○其[illegible]其談

○専

○[illegible]談

○傳

事官。轉飭洋商知照在案。惟查此案係由閩粵暨熟番頭

人劉卓杞篤僉其保結內稱卓杞篤與李領事面訂和約。

立旗爲憑嗣後無論何國商船遭風到地認明旂號互相

保護救援。生番不敢再行擅殺。如有此事一經官兵到地

該頭人等願同別社生番齊心恊力幫同拏兇解官懲治。

倘外國商船無故登山別釀事端被生番殺害者不干該

頭人之事等語是李領事與卓杞篤所議旂號係專為遭

風商船而設若無故登山番姓嗜殺即不能以有此旂為

憑保其不行殺害自應申明章程由領事官傳知洋商自

相約束。以免別滋事端合就會檄飭局即速遵照尅日轉

○博ハ轉或ハ傳ノ誤ナラン
○擅
○甬
○擅

飭委員。共各國領事官約明。博知洋商務各、遵守此次章
程。自相約束。不得在番地擅自登岸。再查臺屬番社較多。
亀仔甬十八番社次外。非卓杞篤所能管束。係即轉飭各
洋商。尤不得擅入別社番界。是為至要。仍由局移行臺灣
文武。一體查照等因。奉此。查琅璚生番查辦完結。業經
貴領事共番目卓杞篤。面定和約。次後設旂為號。無論何
國商船遭風到彼。即照此旗為憑救援。由
貴領事呈送旗式。申陳
督憲發局。業經由局分別照會。轉飭各洋商知照。各在案。
茲奉前因。合再照會。

the throne stating that they had

○甬
○束○擅

貴領事。煩為查照。希照
憲行事理。傳知各洋商。務各遵守。此次章程。自相約束。不
得在番地擅自登岸。再查臺屬番社較多。亀仔甬十八社次
外。非卓杞篤所能管速。並即轉飭各洋商。尤不得擅入別
社番界。是為至要。須至照會者。

右　照　下　會

大合衆國欽命辦理通商事務前陸路提督駐廈領事府李。

大清同治柒年正月　十四　日照會。

appointed the former acting general at Tauwan, Chun, and others ~~to~~ immediately to inquire into the circumstances of the case and to accompany the Amoy Consul Le Gendre to Loong Kiao and finish the business.

The Consul made an agreement with the savage chief Tok e Tok respecting the kind of flag to be hereafter used so that in future any foreign vessel being in distress near that place [that flag should be shown when the savages would do their utmost to render assistance. The Consul presented a flag made of red camlet of the proper form to the Acting Viceroy, and requested H.E. to address the Consuls of all nationalities, in order that this rule may be publicly known. —

H.E. handed over this flag to the Board of Trade, and directed them to address the various Consuls requesting them to make this regulation known to foreign merchants. —

The chief of the Fokkien and Canton civilized savages obtained a guarantee from the savage chief Tok e Tok to the effect that the latter, having come to a friendly understanding with the U.S. Consul, of which this flag was a proof, stating that hereafter if any foreign merchant vessel should be in distress near that place the savages would recognize that flag and render every assistance in their power. They will not in future dare to wantonly take away life, if they do the Chinese authorities will send an armed force to visit the place] and assisted by the chief of the civilized savages will seize the murderers and hand them over for punishment. But if foreigners from merchant vessels (not being from a vessel in distress) land at that spot and cause trouble, and the savages kill or ill treat them, the before mentioned chiefs will not be held responsible for the consequences.

The Consul agreed therefore with Tok e Tok that the flag should have reference only to merchant vessels in distress. if other foreigners visit that spot, they cannot make use of that flag as a protection against injury. the various Consuls are therefore requested to make this distinctly understood by foreign merchants so that hereafter there may not be trouble. The Acting Viceroy and the Governor

request the Board of Trade immediately to write despatches to, and on the day of the receipt of this despatch to appoint a deputy to visit, the various foreign Consuls and explain the above, and to request foreign merchants not to visit places occupied by savages.

The settlements of the savages in Formosa are very numerous. At Kuei Tsai Luh there are eighteen villages ruled by Tok e Tok, but there are also others not under his jurisdiction it is therefore of the utmost importance that foreign merchants should not visit any of the places outside of these eighteen villages, the Board of Trade should at once address the civil and military authorities in Formosa to this effect.

The savages at Loong Kiao

having come to this arrangement (settled the business) and as you have come to a friendly understanding with their chief Tok e Tok and settled upon a flag as a signal so that hereafter should any foreign vessel be in distress near that place this flag should be shown as a proof when assistance will be rendered and as you have presented the description of flag to the Viceroy which H.E. has handed over to us we have addressed the various foreign Consuls requesting them to make known to the merchants the above named regulation. Upon receipt of the joint despatch above quoted of H.E. the Viceroy and the Governor we again address you requesting you to make known to the foreign merchants the views

of their Excellencies on this subject that they may observe the rule not to visit territory in possession of the savages at Formosa.

Their villages in Formosa being very numerous and Tok e Tok having rule over only eighteen it is of the very utmost importance that foreigners should abstain from visiting any places beyond the jurisdiction of that chief.

United States Consulate,
Amoy Aug. 13. 1874

I certify that I have carefully compared the foregoing with the original translation now on file in this Office and find it to be a full true and correct copy of the same

(signed) J. J. Henderson
(seal)
U. S. Consul

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